COVER NOTE

JUNE 2022

From March to June 2022, a group of senior and experienced thinkers from Russia, Ukraine, Europe, the United States and China has convened on a regular basis to discuss the conflict in Ukraine.

The group includes individuals affiliated with the following institutions:

- Centre for International Studies, Oxford University
- European Leadership Network
- Institut Montaigne, Paris
- Institute for Global Transformations, Kyiv
- Program on Negotiation, Harvard University
- Russian International Affairs Council
- Shanghai Institute for International Studies

The group's discussions considered the genesis, wider context, and implications of the war Ukraine, and ways in which decision makers could manage, mitigate and potentially resolve the conflict.

All members of the group share deep concern about the adverse consequences of the war and the risks of escalation. They are aware of the challenges and complexities of negotiations in relation to the conflict. Yet all believe that strenuous and considered efforts should be made to promote dialogue and negotiations in three major areas: the Russia-Ukraine conflict, European security, and strategic stability and risk reduction.

The group has not sought to develop solutions in these areas, in substantive terms, which is a matter for the relevant parties, but to set out a viable framework for engagement and outline processes by which progress could be made in addressing key issues.

The group therefore developed a paper, attached, which sets out a multi-level framework for negotiations to address the conflict in Ukraine and promote European and global stability.

The paper is a working draft, which is being shared with high level international officials and a number of established experts. As the group continues its deliberations, it welcomes reactions to the paper, and ideas and suggestions in relation to the issue of negotiations.

THE CONFLICT IN UKRAINE

A POSSIBLE FRAMEWORK FOR NEGOTIATIONS

JUNE 2022

This paper, prepared by Russian, Ukrainian, European, American and Chinese thinkers, proposes a multi-level negotiating framework to address the conflict in Ukraine and promote European and global stability.

We believe a sustainable resolution of the conflict, or at least the avoidance of vertical, horizontal or political escalation, requires negotiations on three distinct but interrelated sets of issues concerning: (1) the Russia–Ukraine conflict, (2) European security, and (3) strategic stability and risk reduction. This approach reflects the multi-dimensional nature of the conflict and increases the prospects for progress given escalatory dynamics between the parties and the risk of zero-sum approaches to negotiations. Indeed, we believe that progress on each of these sets of issues would be mutually reinforcing.

Accordingly, we propose: (1) the establishment of an international contact group to support and assist negotiations between the Russian Federation and Ukraine, (2) the establishment of multilateral talks on European security, and (3) the resumption of the US-Russia Strategic Stability Dialogue and continuation of discussions on strategic risk reduction by the P5 members of the UN Security Council. While these three processes are not formally linked they are interrelated and symbiotic, requiring reciprocal communication and adaptation.

Preliminary Engagement

We recognize that under the current circumstances there is little prospect for negotiations or even discussions on a framework for negotiations. The focus of the parties and their allies is on the battlefield. This does not obviate the need for continual efforts to identify or create opportunities to mitigate the conflict. Moreover, the immense human, political, social, economic and financial costs and repercussions of the conflict for both sides, and internationally, are likely to generate a higher level of interest in negotiations in due course. Steps should be taken now to prepare for this eventuality, and to create the political conditions for discussions on a framework for negotiations and a possible ceasefire or de-escalation. A ceasefire agreed in the context of a political process is more likely to be stable and effective than one agreed without such a process. Two sets of activities are required: (1) preliminary, multi-party, non-official talks conducted through track two and track one point five channels of dialogue, and (2) confidential backchannel diplomacy conducted by relevant officials. Both activities – neither of which preclude or impede military efforts – should consider the structure, modalities and sequencing of a viable negotiation framework, key elements of which are set out in this paper.

1. International Contact Group

Russia-Ukraine negotiations should be supported by a group of friends or International Contact Group on Negotiations (ICGN), comprising five to ten states or international organizations, including the United States and China. The central goal of the ICGN would be to support and assist the parties to reach and implement a negotiated outcome to the conflict. The specific objectives would be to: (1) help establish a viable negotiating framework and sustain ongoing dialogue; (2) support the development of measures that build trust and confidence between the parties and promote de-escalation; (3) mobilize external support for the formulation and implementation of an agreement; (4) assist with measures to avoid escalation in conflict intensity or geographic scope; and (5) sustain international support for negotiations. The ICGN should provide advice and expertise, marshal leverage and resources, enable coordination, and support monitoring and implementation. It should also promote and give effect to the women, peace and security agenda. The group would, potentially

with UN assistance, establish a secretariat, meet regularly, receive briefings from the parties, retain experts, conduct consultations with civil society, and form working groups as required.

2. European Security Talks

Multilateral European Security Talks should be convened to develop the widest possible consensus on arrangements to support Russia-Ukraine negotiations and promote long term security and stability in Europe. Participants would comprise all NATO states, all non-NATO states in Europe, and all member states of the OSCE, in addition to China and India. The parties would decide the co-chairs, which should include the United States and Russian Federation, and the Talks would be co-facilitated by the UN and OSCE. The process would look to establish new, stable regional security arrangements, taking into account the role and future of NATO. Specifically, the Talks would consider: (1) ways of supporting a cessation of hostilities or ceasefire between the Russian Federation and Ukraine, and a negotiated resolution of the conflict; (2) agreement on the number, type and location of conventional forces in Europe; (3) the possibility of zones of limited armament, to prevent rapid large-scale mobilization and deployment of forces; (4) arrangements for verification and monitoring; (5) measures concerning military communication, transparency and confidence building; and (6) economic and energy issues, including sanctions, reconstruction and development. The parties should seek to ensure the full and meaningful participation of women in the Talks, and in related political processes, peacebuilding and reconstruction. Draft terms of reference for the Talks have been developed, which could form the basis of a corresponding resolution of the UN General Assembly and/or Security Council to establish and launch the process.

3. Strategic Stability and Risk Reduction Talks

A twin-track international approach should be taken to nuclear weapons and other strategic concerns. First, the US-Russia Strategic Stability Dialogue should be resumed. Given the devastating consequences of nuclear war, action that strengthens strategic stability and protects against instability is in the interests of both parties and international security. These talks would seek to ensure a broad balance of strategic and non-strategic nuclear weapons and their delivery systems in the Euro-Atlantic area, and reach mutual understandings about how to manage and reduce the risk of the use of nuclear weapons and the threat to use nuclear weapons. The talks could revisit some of the issues recently under discussion between the parties and consider measures to promote restraint, transparency and predictability, as well as monitoring and verification. Second, in concert with this dialogue and complementary to it, the P5 members of the UN Security Council should resume their deliberations on strategic risk reduction under the Nuclear Non-Proliferation Treaty. These discussions would help to ensure that global level strategic concerns are considered and addressed.

Both sets of strategic talks would give full consideration to quantitative arms controls measures, as well as other means of promoting peace, security and strategic stability, including confidence building, codes of conduct, channels of communication and exchanges of information. The talks would also consider ways of promoting strategic stability and risk reduction in the context of rapid technological advances, not least in artificial intelligence, hypersonic weapons, space militarization, cyber and electronic warfare, and autonomous weapons systems, which may require new approaches to arms control.

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INTRODUCTION

The intensification, protraction and multi-dimensional escalation of the conflict in Ukraine has significant regional and global implications. These factors also affect the means by which the conflict will be resolved, in both process and substance, which is the subject of this paper.

Prepared by Russian, Ukrainian, European, American and Chinese thinkers, the paper draws on public and private suggestions made by the Russian Federation, Ukraine and their partners, on arrangements that, taken forward as and when appropriate, could prove conducive to negotiations.

Intermittent Russia-Ukraine negotiations should continue. However, escalatory conflict dynamics, the military and political exigencies of both the Russian Federation and Ukraine, including the need to demonstrate victory for internal and external purposes, and the proclivity for zero-sum approaches to the conflict, means it may be difficult for talks to make substantial progress. This paper therefore proposes positive-sum measures which enlarge the scope of the issues, increase international support for bilateral negotiations, and establish multilateral negotiations on a wider set of issues.

We believe a sustainable resolution of the conflict, or at least the avoidance of vertical, horizontal and political escalation, requires negotiations on three distinct but interrelated sets of issues concerning: (1) the Russia–Ukraine war, (2) European security, and (3) strategic stability and risk reduction. We believe that progress on each of these sets of issues would be mutually reinforcing.

Accordingly, this paper makes three proposals with respect to each set of issues: (1) the establishment of an international contact group to support and assist negotiations between the Russian Federation and Ukraine, (2) the establishment of multilateral talks on European security, and (3) the resumption of the US-Russia Strategic Stability Dialogue and discussions on strategic risk reduction by the P5 members of the UN Security Council. While these three processes are not formally linked they are interrelated and symbiotic, requiring reciprocal communication and adaptation.

These proposals are designed to bring states together, notwithstanding their views on the conflict, in an effort to increase the prospects for a negotiated resolution, reduce the likelihood of escalation, and improve long term security and stability for the region.

It is recognized that agreement on the framework for negotiations, in what may become a protracted conflict, will not of itself deliver solutions to difficult and complex challenges. However, the proposals may help to establish a robust and wide-reaching process, with interlocking elements, that could help repair relationships, reduce risks, create incentives for cooperation, and generate incremental progress.

PRELIMINARY ENGAGEMENT

It is recognized that under the current circumstances there is little to no prospect for negotiations or even discussions about a framework for negotiations. The parties are engaged in a fierce contest for the control of territory in Ukraine and are focused on strengthening their positions on the battlefield. The political and diplomatic activities of the parties are therefore in large part devoted to supporting and enabling the achievement of military objectives.

This does not obviate the need for continual efforts to identify or create opportunities to mitigate the conflict. Moreover, the human, political, social, economic and financial costs and repercussions of the conflict for both sides are extremely high and likely to increase. Thousands of soldiers and civilians are being killed and injured. Large parts of Ukraine's social and economic infrastructure have been destroyed, international sanctions are weakening Russia's economy, and combined war financing amounts to several hundred million dollars per day. The international consequences of the war are also severe. The conflict has created millions of refugees and undermined multilateral action to address global challenges. It is causing massive disruption to international energy markets, financial conditions, agricultural production, and food supplies, exacerbating food insecurity for tens of millions of people in developing countries. Domestic and international pressure to mitigate or resolve the conflict is likely to increase.

These factors, combined with the difficulty of making military gains on the ground and the risks of escalation, and are likely to lead in due course to higher levels of interest in negotiations. We believe steps should be taken now to prepare for this eventuality, and to create the political conditions for discussions on a framework for negotiations and a possible ceasefire or de-escalation. A ceasefire agreed in the context of a political process is more likely to be stable, effective and enduring than a ceasefire agreed without such a process. Two sets of activities are required: (1) preliminary, multi-party, non-official talks, and (2) confidential backchannel diplomacy conducted by relevant officials.

Both of these efforts should consider and develop the ideas set out in this paper relating to the structure and modalities of a viable negotiation framework. Discussions could also consider the sequencing of any process, in the three spheres noted above. It is recognized that efforts to establish an international contact group may be prioritized over the near term but, as noted above, concurrent work in all three areas would be mutually advantageous.

Preliminary, non-official talks should be conducted collaboratively through track two and track one point five channels of dialogue involving knowledgeable and respected individuals from relevant states. Progressively, such talks should seek to ascertain and take account of official thinking. Importantly, this process would help to: (1) sustain indirect dialogue and communication between relevant parties; (2) ensure the development of process proposals that are ultimately acceptable to all parties; (3) incrementally open political space for official discussions around negotiations; and (4) prepare the ground for measures of trust-building, de-escalation and a potential ceasefire.

Vigorous and sustained confidential backchannel diplomacy will be required throughout the negotiation process. This is necessary to build trust, socialize and develop ideas, clarify understandings, and generate buy-in. Such diplomacy has already been initiated on certain issues. One subject for early consideration in such channels should be the process issues raised in this paper, drawing on ideas and proposals which will emerge from the concurrent preliminary talks proposed above.

It cannot be assumed that negotiations will eventually follow the fighting. Extensive work must be undertaken now to give negotiations a chance of succeeding in due course. These two activities – preliminary talks and backchannel diplomacy – in no way preclude or impede military and related efforts, but they could substantially improve the longer-term prospects for establishing a negotiation process and a ceasefire or de-escalation, which would be mutually reinforcing.

We believe these activities should be initiated now to allow time for their development, and encouraged and resourced by states accordingly. Ideally, they should be underway before an anticipated reduction in hostilities, which could potentially arise as soon as July.

1. INTERNATIONAL CONTACT GROUP

An ad hoc framework for direct and virtual talks between representatives of the Russian Federation and Ukraine already exists, supported by Türkiye and Israel, and for the time being this should continue to serve as the principal platform for addressing the issues of contention between the parties. It is therefore not given further consideration in this paper.

It is recognized that Russia–Ukraine dialogue takes places against the backdrop of protracted armed conflict since 2014, troubled negotiations, and disputes over the interpretation and implementation of the Minsk Agreements, creating a legacy of enmity, grievance and mistrust. Given this, and other major obstacles to progress, we believe this bilateral dialogue should be supported by a group of friends or International Contact Group on Negotiations (ICGN).

Such a group could potentially consist of five to ten states or international organizations. While it is anticipated that both the United States and China would be members of the ICGN, given that each could play an important role in advancing the group's objectives, there are nevertheless different ways in which such a group could be formed. Options include: confidential diplomatic consultations between members most suited and able to help the groups achieve its objectives, potentially including those already engaged in supporting dialogue or with experience of such work; P5 states and other members as approved by the UN Security Council or UN Secretary-General; three or four members nominated by each of the Russian Federation and Ukraine, or up to 10 states nominated, for final selection of six to eight states by the UN Secretary-General. However the group is formed, the process should not be unduly protracted, and consideration should be given to the possibility that the group is endorsed by a resolution of the UN General Assembly and/or Security Council.

The central goal of the ICGN would be to support and assist the parties to reach and implement a negotiated outcome to the conflict and avoid escalation. By way of assistance, the group could provide advice and expertise, marshal leverage and resources, enable coordination, and support monitoring and implementation. Specifically, the ICGN would:

(1) Help to establish a negotiation framework and sustain ongoing dialogue between the parties;
(2) Support the development and implementation of measures of confidence building and de-escalation;
(3) Mobilize external support for the formulation and implementation of an eventual agreement;
(4) Consider and assist with measures to avoid an escalation in conflict intensity or geographic scope; and
(5) Help to build and maintain a broad international consensus in support of negotiations to end the conflict and limit its negative repercussions.

The members of the ICGN, together with the Russian Federation and Ukraine, would, by mutual agreement, establish a secretariat to organize, manage and run the group's activities, perhaps supported by an envoy appointed by the UN Security Council. The ICGN would receive regular briefings by the parties after each of their meetings. It would meet regularly and on an ad hoc basis, retain specialist advisers as required, including current or former officials and established experts, conduct consultations with community leaders and civil society, and potentially form working groups on specific issues. The ICGN should also promote and give effect to the women, peace and security agenda. The group would develop strong relationships with United Nations agencies and a range of other relevant international institutions and organizations, such the World Bank and OSCE.

The rationale for establishing such a group is fivefold: (1) ensure a continuous negotiating architecture during and in the absence of direct talks; (2) help the parties navigate inevitable challenges and obstacles; (3) mobilize external support as required, including diplomatic, technical, logistical, economic and security-related; (4) bring coherence to the process, thereby helping to avoid duplication or gaps, ambiguities and misunderstandings; and (5) support the implementation of any agreement, which could involve complex and costly arrangements related to humanitarian relief, the disengagement and separation of forces, peacekeeping, verification and monitoring, and post-conflict reconstruction, all of which are likely to require the participation of the United Nations and its specialized agencies. Self-evidently, many of these issues relate to the European Security Talks set out below.

2. EUROPEAN SECURITY TALKS

Russia-Ukraine talks address a range of issues, some of which can be addressed by the parties bilaterally, and others of which have European dimensions, especially Ukraine's military alignment, external security commitments, regional security arrangements, and economic reconstruction.

Accordingly, a multilateral process should be established to develop the widest possible consensus on arrangements to support Russia-Ukraine negotiations and promote long term security and stability in Europe. Such talks would consider steps to support the cessation of hostilities, and the interconnected issues of military alignment and security guarantees and commitments. Taking account of any agreements reached in the course of bilateral negotiations, the talks could include discussion of international arrangements on the ground, potentially specified or phased so as to correspond to situational exigencies.

The talks would ultimately seek to reach agreement relating to the structure, strength and location of conventional armed forces in Europe, and associated measures of monitoring, verification, and risk reduction. Thus, in part, the agreement would succeed elements of the Treaty on Conventional Armed Forces in Europe. The discussions should involve consideration of agreement on limits to the number and type of forces in certain geographic areas, to prevent rapid large-scale mobilization and deployment of forces, thus reinforcing, in practical terms, any treaty guarantees or commitments. Trade, economic and energy issues with a substantial bearing on European stability should also be considered in the talks, including sanctions and reconstruction.

The multilateral process would comprise all member states of the OSCE. As world powers whose national interests substantially depend on European security and as potential guarantors of any agreement, China and India would also be invited to participate.

The parties would decide the co-chairs of the talks, which should include the United States and Russian Federation. Discussions could be facilitated by the United Nations, OSCE or co-facilitated by both organizations. The talks could therefore potentially be located in Geneva or Vienna.

The United Nations General Assembly and Security Council may have a role in establishing, endorsing and launching the negotiations, once the parties have agreed to participate. The draft terms of reference set out below could form the basis of a corresponding resolution to be passed by the UN General Assembly and/or Security Council.

European Security Talks – Draft Terms of Reference

The following states of Europe, in addition to those of North America and Central Asia, shall participate in European Security Talks *[as noted above in alphabetical order]*. The People's Republic of China and the Republic of India are also invited to participate, and such other states as the parties agree.

The central goals of the Talks are to enable and support Russia-Ukraine negotiations and to promote long term security and stability in Europe. All states in Europe, the Eurasian and Euro-Atlantic areas, and indeed in all regions of the world stand to benefit from such efforts.

The Talks shall proceed on the well-established principles of the sovereign equality, territorial integrity and political independence of all states, and the mutual interdependence of peace and security.

The Talks will consider the underlying causes and factors behind the war in Ukraine, divergent perceptions of key issues, the legitimate security concerns of all parties, perspectives on ways forward, and the establishment of new, stable regional security arrangements, taking into account the role and future of the North Atlantic Treaty Organization.

The specific objectives of European Security Talks are to consider:

(1) Ways of supporting a cessation of hostilities or ceasefire between the Russian Federation and Ukraine, and a negotiated resolution of the conflict;
(2) Agreement relating to the number, type and location of conventional forces in Europe;
(3) The possibility of zones of limited armament, whereby in certain defined areas there would be limitations on infantry, armor, artillery, missiles, aircraft, including lethal unmanned aerial vehicles, and air defense, in order to prevent rapid large-scale mobilization and deployment of forces;
(4) Arrangements for verification and monitoring;
(5) Measures concerning military communication, transparency and confidence building; and
(6) Trade, economic and energy issues, including sanctions, reconstruction and development.

The parties shall seek to ensure the full, effective and meaningful participation of women in the Talks, and in related political processes, peacebuilding and reconstruction.

The Talks seek to formulate a mutually acceptable agreement or agreements, which are internationally binding, and which record the widest possible consensus that can be achieved on the issues set out above.

The Talks shall build on all relevant previous arrangements and agreements, or key elements thereof, which shall form a basis for the discussions.

European Security Talks should proceed regardless of progress or lack thereof in any other fora, including the Russia-Ukraine negotiations and the talks on strategic stability and risk reduction, and similarly those talks should not be dependent on progress in the European Security Talks.

Notwithstanding this, European Security Talks will take full account of developments in each set of negotiations, and there should be close communication and mutual support between them. The parties assume the obligation to keep the Russia-Ukraine and strategic talks informed of their work, and look to both sets of negotiations to respond similarly.

The co-chairmanship of the Talks shall be agreed between the parties. Recognizing that peace requires negotiations with adversaries, not allies, and to give the talks the best chance of success, the co-chairmanship should include the United States and the Russian Federation. One formulation for consideration could be co-chairmanship by the European Union, Eurasian Economic Union, United States and Russian Federation.

The Talks will be convened under the auspices of the United Nations and the Organization for Security and Co-operation in Europe, who shall act as co-facilitators. Neutral or non-aligned states could also potentially serve as co-facilitators.

The Talks should continue with regularity, involving attendance by all parties. Sub-groups on specific issues may be formed and convened as necessary.

Talks shall be conducted in a confidential manner with each party responsible for preserving that confidentiality and any public statements shall be made on the basis of agreement or consensus.

This process in no way excludes bilateral or multilateral communications between the parties and any such engagement that enables and promotes progress in the Talks is encouraged.

Given the possibility of lengthy negotiations, the co-chairs and co-facilitators shall use their best efforts to avoid procrastination or delay.

Agreements reached shall be registered with the United Nations and submitted to the United Nations Security Council for its endorsement and support.

As stated, the Talks shall consider economic and energy issues, including the role of political, economic and financial sanctions, and their impact on the global economy and on parties that are not involved in the conflict. Where such sanctions have been enacted for the objective of ending the war and bringing about peace, they should be lifted when their objective is achieved.

If negotiations on the central objectives are successful, the Talks may also proceed to consider arrangements that could be conducive for the resolution of the unresolved conflicts in Abkhazia, South Ossetia, Nagorno-Karabakh, and Transnistria, but the Talks are in no way dependent on making progress towards the resolution of those conflicts.

3. Strategic Stability and Risk Reduction Talks

This paper proposes a twin-track approach to nuclear weapons and other strategic concerns, involving a continuation of the US-Russia Strategic Stability Dialogue, and strategic risk reduction talks by the P5 members of the UN Security Council.

The justification for resuming the US-Russia Strategic Stability Dialogue is self-evident: that nuclear war would have devastating consequences for humanity and that such a conflict cannot be won and must never be fought. Action that strengthens strategic stability and protects against instability meets the interests of both parties and international security.

These talks would seek to ensure a broad balance of strategic and non-strategic nuclear weapons and their delivery systems in the Euro-Atlantic area, and would at a minimum seek to secure mutual understandings about how to manage and reduce the risk of the use of nuclear weapons and the threat to use nuclear weapons. The talks would also seek to agree measures to promote restraint, transparency and predictability, as well as provisions relating to monitoring and verification.

It is suggested that some of the issues under discussion between the United States and the Russian Federation in December 2021 and January 2022 could be revisited and revived. Specifically, these issues relate to: nuclear exercises, the avoidance of hazardous activities, military to military dialogue, ballistic missile defense, and the deployment of short and intermediate range ballistic missiles. Talks should also consider reductions in strategic and tactical nuclear weapons and delivery vehicles.

As previously, the Strategic Stability Dialogue would involve direct negotiations between the United States and the Russian Federation without facilitation. Separately, the United States and the Russian Federation should regularly brief China, France and the United Kingdom on the talks.

In concert with this Dialogue, the P5 members of the UN Security Council should resume their deliberations on strategic risk reduction under the Nuclear Non-Proliferation Treaty, for which there is an agreed, rotating

presidency. This work would not duplicate the US-Russia Dialogue. Rather, it would be complementary to it, securing wider international engagement, ensuring that global level strategic concerns are considered and addressed, and preparing the ground for the critical NPT Review Conference in August 2022. The Security Council may of course decide to consult other states in the course of these deliberations.

The UN Security Council should, in parallel to these efforts, continue its deliberations on global issues that could have implications for strategic stability, including food and energy security, finance, and multilateralism, to advance international agreement on action that could mitigate the wider impact of the war in Ukraine.

The parties to the twin-track process proposed above would assume the obligation to keep the Russia-Ukraine negotiations and the European Security Talks informed of its work, and look to each of those negotiations to respond in kind.

A continuing and important objective of both sets of negotiations is further reductions of nuclear weapons and their delivery vehicles. Notwithstanding this, recognizing that legally binding quantitative limits will be difficult to agree and implement, and that the priority is preserving peace and avoiding nuclear war, the talks will give full consideration to other means of promoting peace, security and strategic stability. Such measures include but are not limited to confidence building measures, codes of conduct, channels of communication between the military, politicians and experts at various levels, parallel reductions in the combat readiness of nuclear delivery systems, mutual deterrence in deploying certain types of systems, and the exchange of information on the evolution of strategic doctrines and plans for military procurement and development.

Both sets of talks should not be limited to nuclear weapons per se, given that a new technological arms race is underway, especially in artificial intelligence, hypersonic weapons, space militarization, cyber and electronic warfare, and autonomous weapons systems. Talks on both strategic stability and risk reduction should address the development and use of such technologies. This may require new approaches to arms control, in which norms, conventions and codes of conduct may have greater importance than international treaties. The talks should give consideration as to how such measures can be developed and promoted, including the potentially significant role of the private sector and civil society.